

The Notaries Act, 1952

(ACT NO. 53 OF 1952)

[*As on the 15th January, 2026*]

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LIST OF AMENDING ACTS

1. The Repealing and Amending Act, 1957 (36 of 1957).
2. The Central Laws (Extension to Jammu and Kashmir) Act, 1962 (25 of 1968).
3. The Delegated Legislation Provisions (Amendment) Act, 1983 (20 of 1983).
4. The Notaries (Amendment) Act, 1999 (36 of 1999).

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LIST OF ABBREVIATIONS USED

Cl.,cls.	*for*	Clause, clauses.
Ins.	,,	Inserted.
Notifn.	,,	Notification.
S., ss.	,,	Section, sections.
Sch.	,,	Schedule.
Subs.	,,	Substituted.
w.e.f.	,,	with effect from.

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THE NOTARIES ACT, 1952

ARRANGEMENT OF SECTIONS

SECTIONS

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15. Power to make rules.
16. [*Repealed.*]

IndiaCode

THE NOTARIES ACT, 1952

ACT NO. 53 OF 1952[1]

[9*th August,* 1952.]

An Act to regulate the profession of notaries.

BE it enacted by Parliament as follows:—

1. Short title, extent and commencement.—(*1*) This Act may be called the Notaries Act, 1952.

(*2*) It extends to the whole of India [2]* * *.

(*3*) It shall come into force on such date[3] as the Central Government may, by notification in the Official Gazette, appoint.

2. Definitions.—In this Act, unless the context otherwise requires,—

[4]* * * * *

(*b*) "instrument" includes every document by which any right or liability is, or purports to be, created, transferred, modified, limited, extended, suspended, extinguished or recorded;

[5][(*c*) "legal practitioner" means an advocate entered in any roll under the provisions of the Advocates Act, 1961 (25 of 1961);]

(*d*) "notary" means a person appointed as such under this Act:

Provided that for a period of two years from the commencement of this Act it shall include also a person who, before such commencement was appointed a notary public [6][under] the Negotiable Instruments Act, 1881 (26 of 1881), [7]* * * and is, immediately before such commencement, in practice in [8][any part of India:

Provided further that in relation to the State of Jammu and Kashmir* the said period of two years shall be computed from the date on which this Act comes into force in that State.]

(e) "prescribed" means prescribed by rules made under this Act;

(*f*) "Register" means a Register of Notaries maintained by the Government under section 4;

[9][(*g*) "State Government", in relation to a Union territory, means the administrator thereof.]

3. Power to appoint notaries.—The Central Government, for the whole or any part of India, and any State Government, for the whole or any part of the State, may appoint as notaries any legal practitioners or other persons who possess such qualifications as may be prescribed.

4. Registers.—(*1*) The Central Government and every State Government shall maintain, in such form as may be prescribed, a Register of the notaries appointed by that Government and entitled to practice as such under this Act.

(*2*) Every such Register shall include the following particulars about the notary whose name is entered therein, namely:—

(*a*) his full name, date of birth, residential and professional address;

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1. The Act has been extended to Goa, Daman and Diu by Reg. 12 of 1962, s. 3 and Schedule (w.e.f. 1-10-1965), Dadra and Nagar Haveli by Reg. 6 of 1963, s. 2 and Schedule I; Pondicherry by Act 26 of 1968, s. 3 and Schedule and the State of Sikkim by S.O. No. 213(E), dated 16-5-1975, Gazette of India, Extraordinary, 1975, Part II, s. 3(*ii*) (w.e.f. 16-5-1975).
2. The words "except the State of Jammu and Kashmir" omitted by Act 25 of 1968, s. 2 and the Sch. (w.e.f. 15-8-1968).
3. 14th February, 1956: *vide* notification No. S.R.O. 317, dated 10th February, 1956, *see* Gazette of India, Extraordinary, Part II, s. 3.
4. Cl. (*a*) omitted by Act 25 of 1968, s. 2 and the Schedule (w.e.f. 15-8-1968).
5. Subs. by Act 36 of 1999, s. 2, for cls. (*c*) (w.e.f. 17-12-1999).
6. Subs. by Act 25 of 1968, s. 2 and the Sch., for "either under" (w.e.f. 15-8-1968).
7. The words "or by Master of Faculties in England" omitted by s. 2 and the Sch., *ibid*. (w.e.f. 15-8-1968).
8. Subs. by s. 2 and the Sch,, *ibid*., for "any part of India" (w.e.f. 15-8-1968).
9. Subs. by the A.O. (No. 3), 1956, for cls. (*g*).

*. *Vide* notification No. S.O. 3912(E), dated 30th October, 2019, this Act is made applicable to the Union territory of Jammu and Kashmir and the Union territory of Ladakh.

(*b*) the date on which his name is entered in the Register;

(*c*) his qualifications; and

(*d*) any other particulars which may be prescribed.

5. Entry of names in the Register and issue or renewal of certificates of practice.—(*1*) Every notary who intends to practise as such [1][may] on payment to the Government appointing him of the prescribed fee, if any, be entitled—

(*a*) to have his name entered in the Register maintained by that Government under section 4, and

(*b*) to a certificate authorising him to practise for a period of [2][five years] from the date on which the certificate is issued to him.

[3][(*2*) The Government appointing the notary, may, on receipt of an application and the prescribed fee, renew the certificates of practice of any notary for a period of five years at a time.]

6. Annual publication of lists of notaries.—The Central Government and every State Government shall, during the month of January each year, publish in the Official Gazette a list of notaries appointed by that Government and in practice at the beginning of that year together with such details pertaining to them as may be prescribed.

7. Seal of notaries.—Every notary shall have and use, as occasion may arise, a seal of such form and design as may be prescribed.

8. Functions of notaries.—(*1*) A notary may do all or any of the following acts by virtue of his office, namely:—

(*a*) verify, authenticate, certify or attest the execution of any instrument;

(*b*) present any promissory note, hundi or bill of exchange for acceptance or payment or demand better security;

(*c*) note or protest the dishonour by non-acceptance or non-payment of any promissory note, hundi or bill of exchange or protest for better security or prepare acts of honour under the Negotiable Instruments Act, 1881 (26 of 1881), or serve notice of such note or protest;

(*d*) note and draw up ship's protest, boat's protest or protest relating to demurrage and other commercial matters;

(*e*) administer oath to, or take affidavit from, any person;

(*f*) prepare bottomry and respondentia bonds, charter parties and other mercantile documents;

(*g*) prepare, attest or authenticate any instrument intended to take effect in any country or place outside India in such form and language as may conform to the law of the place where such deed is intended to operate;

(*h*) translate, and verify the translation of, any document from one language into another;

[4][(*ha*) act as a Commissioner to record evidence in any civil or criminal trial if so directed by any court or authority;

(*hb*) act as an arbitrator, mediator or conciliator, if so required;]

(*i*) any other act which may be prescribed.

(*2*) No act specified in sub-section (*1*) shall be deemed to be a notarial act except when it is done by a notary under his signature and official seal.

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1. Subs. by Act 36 of 1999, s. 3, for "shall" (w.e.f. 17-12-1999).
2. Subs. by s. 3, *ibid.*, for "three years" (w.e.f. 17-12-1999).
3. Subs. by s. 3, *ibid.*, for sub-section (*2*) (w.e.f. 17-12-1999).
4. Ins. by s. 4, *ibid*. (w.e.f. 17-12-1999).

9. Bar of practice without certificate.—(*1*) Subject to the provisions of this section, no person shall practise as a notary or do any notarial act under the official seal of a notary unless he holds a certificate of practice in force issued to him under section 5:

Provided that nothing in this sub-section shall apply to the presentation of any promissory note, hundi or bill of exchange for acceptance or payment by the clerk of a notary acting on behalf of such notary.

(*2*) Nothing contained in sub-section (*1*) shall, until the expiry of two years from the commencement of this Act, apply to any such person as is referred to in the proviso to clause (*d*) of section 2.

[1][Provided that in relation to the State of Jammu and Kashmir* the said period of two years shall be computed from the date on which this Act comes into force in that State.]

10. Removal of names from Register.—The Government appointing any notary may, by order, remove from the Register maintained by it under section 4 the name of the notary if he—

(*a*) makes a request to that effect; or

(*b*) has not paid any prescribed fee required to be paid by him; or

(*c*) is an undischarged insolvent; or

(*d*) has been found, upon inquiry in the prescribed manner, to be guilty of such professional or other misconduct as, in the opinion of the Government, renders his unfit to practise as a notary; [2][or]

[2][(*e*) is convicted by any court for an offence involving moral turpitude; or

(*f*) does not get his certificate of practice renewed.]

11. Construction of references to notaries public in other laws.—Any reference to a notary public in any other law shall be construed as a reference to a notary entitled to practice under this Act.

12. Penalty for falsely representing to be a notary, etc.—Any person who—

(*a*) falsely represents that he is a notary without being appointed as such, or

(*b*) practises as a notary or does any notarial act in contravention of section 9,

shall be punishable with imprisonment for a term which may extend to [3][one year], or with fine, or with both.

13. Cognizance of offence.—(*1*) No Court shall take cognizance of any offence committed by a notary in the exercise or purported exercise of his functions under this Act save upon complaint in writing made by an officer authorised by the Central Government or a State Government by general or special order in this behalf.

(*2*) No Magistrate other than a Presidency Magistrate or a Magistrate of the first class shall try an offence punishable under this Act.

14. Reciprocal arrangements for recognition of notarial acts done by foreign notaries.—If the Central Government is satisfied that by the law or practice of any country or place outside India, the notarial acts done by notaries within India are recognised for all or any limited purposes in that country or place, the Central Government may, by notification in the Official Gazette, declare that the notarial acts lawfully done by notaries within such country or place shall be recognised within India for all purposes or, as the case may be, for such limited purposes as may be specified in the notification.

15. Power to make rules.—(*1*) The Central Government may, by notification in the Official Gazette, make rules to carry out the purposes of this Act.

(*2*) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

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1. Ins. by Act 25 of 1968, s. 2 and the Sch. (w.e.f. 15-8-1968).
2. Ins. by Act 36 of 1999, s. 5, for "or" (w.e.f. 17-12-1999).
3. Subs. by s. 6, *ibid*., for "three months" (w.e.f. 17-12-1999).

*. *Vide* notifin. No. S.O. 3912(E), dated 30th October, 2019, this Act is made applicable to the Union territory of Jammu and Kashmir and the Union territory of Ladakh.

(*a*) the qualifications of a notary, the form and manner in which applications for appointment as a notary may be made and the disposal of such applications;

(*b*) the certificates, testimonials or proofs as to character, integrity, ability and competence which any person applying for appointment as a notary may be required to furnish;

[1][(*c*) the fees payable for appointment as a notary and for the issue and renewal of a certificate of practice, area of practice or enlargement of area of practice and exemption whether wholly or in part, from such fees in specified classes of cases;]

(*d*) the fees payable to a notary for doing any notarial act;

(*e*) the form of Registers and the particulars to be entered therein;

(*f*) the form and design of the seal of a notary;

(*g*) the manner in which inquiries into allegations of professional or other misconduct of notaries may be made;

(*h*) the acts which a notary may do in addition to those specified in section 8 and the manner in which a notary may perform his functions;

(*i*) any other matter which has to be, or may be, prescribed.

[2][(*3*) Every rule made by the Central Government under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.]

16. [*Amendment of Act* 26 *of* 1881.] *Rep. by the Repealing and Amending Act,* 1957 (36 *of* 1957), *s*. 2 *and Sch. I*.

1. Subs. by Act 36 of 1999, s. 7, for clause (*c*) (w.e.f. 17-12-1999).
2. Ins. by Act 20 of 1983, s. 2 and the Schedule (w.e.f. 15-3-1984).

STATEMENT OF OBJECTS AND REASONS

"Under Section 138 of the Negotiable Instruments Act, 1881, the Government of India have the power to appoint notaries public, but only for the limited purpose of performing functions under that Act. By virtue of an ancient English Statute, the Master of Faculties in England used to appoint notaries public in India for performing all recognised notarial functions, but it is no longer appropriate that persons in, this country who with to function as notaries should derive their authority from an in situation in the United Kingdom.

The object of the present Bill is to empower the Central and State Governments; to appoint notaries, not only for the limited purposes of the, Negotiable Instruments Act, but generally for all recognised notarial purposes, and to regulate the profession of such notaries.

A Bill on the subject was accordingly introduced in the provisional Parliament on the 19th April, 1951 and referred to a Select Committee on the 18th August, 1951. The report of the Select Committee was presented on the 4th October, 1951, but the Bill could not be proceeded with in the last Session of Parliament for want of time and, therefore, lapsed. Apart from one or two minor drafting changes, the present Bill follows closely the Notaries Bill, 1951, as amended by the Select Committee."

NEW DELHI:
The 15th May, 1952.

C.C. BISWAS.

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